# 23SMCV02492 23SMCV02492

County: los-angeles

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Case Number: 23SMCV02492 Hearing Date: July 29, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

June 3, 2026 -- continued to July 29, 2026

CASE NUMBER

23SMCV02492

MOTION

Motion For Provisional Certification of Settlement Class
and Preliminarily Approving Class Action Settlement

MOVING PARTIES

Plaintiffs Sebastian Covarrubias and Leonardo Hernandez,
individually and on behalf of all others similarly situated

OPPOSING PARTY

none

MOTION

This case arises from a wage and hour dispute under the Private Attorney Generals Act ("PAGA"). The lawsuit was originally filed on June 7, 2023. The operative First Amended Complaint ("FAC") brought by named Plaintiffs Sebastian Covarrubias ("Covarrubias") and Leonardo Hernandez ("Hernandez") (together, "Plaintiffs"), individually and on behalf of all others similarly situated, against their former employer, Defendant Frida Restaurant Beverly Hills, LLC ("Defendant") alleges ten causes of action as follows:

1. Failure to Pay Minimum Wage

2. Failure to Pay Overtime Wages

3. Failure to Provide Meal Periods

4. Failure to Provide Rest Periods

5. Failure to Furnish Accurate Wage Statements

6. Waiting Time Penalties

7. Failure to Reimburse for Business Expenditures and Losses

8. Inspecting Personnel Records

9. Failure to Pay Reporting Time Pay

10. Civil

Penalties Under the Private Attorneys General Act

In particular, Plaintiffs bring the action individually and on behalf of "all current and former persons employed by Defendant[] in California as non-exempt employees at any time during the period beginning four years prior to the filing of this Action and ending on the date as determined by the Court[.]" (FAC ¶ 9.)

On March 26, 2026, the action was deemed non-complex by the Assistant Supervising Judge of the Complex Civil Litigation division. Plaintiffs now move for an order:

1. Preliminary and conditionally certifying the Class as described in the parties' Settlement Agreement

2. Preliminarily approving the named Plaintiffs as class representatives

3. Preliminarily approving Levon Shant Yepremian, Christopher A. Adams, Vache Thomassian, and Caspar Jivalgian of KJT Law Group, LLP and Michael H. Boyamian and Armand R. Kizirian of Boyamian Law Inc. as class counsel

4. Preliminarily approving the Settlement Agreement in the amount of $1,250,000

5. Approving the form and content of the proposed Notice to the class

6. Approving the appointment of ILYM Group, Inc. as settlement administrator and preliminary approval of $9,650 in settlement administration costs

7.
Preliminarily approving the payment of a “service award” in the amount of $10,000 each to Plaintiffs Covarrubias and Hernandez, for a total of $20,000 to be deducted from the gross settlement amount and

8.
Preliminarily approving the application for payment to class counsel of reasonable attorneys’ fees in the amount of $437,500, representing 35% of the gross settlement and reimbursement of actual, reasonable costs incurred.

The motion is unopposed.

The Court indicated at the initial hearing that Plaintiffs had inadequately demonstrated that the employment practices affected the entire putative class of 625 employees, such that the putative class was sufficiently numerous or that common issues would predominate. As such, the Court continued the hearing to permit Plaintiffs to submit further briefing, which they have now done.

LEGAL STANDARDS

“To prevent fraud, collusion or unfairness to the class, the settlement or dismissal of a class action requires court approval.” (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1800 (hereafter Dunk).) “The court must determine the settlement is fair, adequate, and reasonable. (Id. at p. 1801.) “The purpose of the requirement is the protection of those class members, including the named plaintiffs, whose rights may not have been given due regard by the negotiating parties.” (Ibid.) In this regard, “[t]he trial court has broad discretion to determine whether the settlement is fair.” (Ibid.)

“Although there is usually an initial presumption of fairness when a proposed class settlement ... was negotiated at arm's length by counsel for the class, ... it is clear that the court should not give rubber-stamp approval. Rather, to protect the interests of absent class members, the court must independently and objectively analyze the evidence and circumstances before it in order to determine whether the settlement is in the best interests of those whose claims will be extinguished.” (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130 (hereafter Kullar).)

Courts should consider relevant factors, tailored to each case, to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreach, or collusion, and that the fair is fair and reasonable to all concerned. (Dunk, supra, 48 Cal.App.4th at p. 1801.) Factors to be considered include “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status throughout trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.” (Ibid.)

ANALYSIS

“A largely settled feature of state and federal procedure is that trial courts in class action proceedings should decide whether a class is proper and, if so, order class notice before ruling on the substantive merits of the action.” (Fireside Bank v. Superior Court (2007) 40 Cal.4th 1069, 1074.) Thus, the Court analyzes Plaintiffs’ request for class certification first.

1. CLASS CERTIFICATION

Class certification is appropriate when the class is too large to make joinder practicable. (Code Civ. Proc., § 382.) “Impracticability does not mean impossibility, but only the difficulty or inconvenience of joining all members of the class.” (Hendershot v. Ready to Roll Transportation, Inc. (2014) 228 Cal.App.4th 1213, 1222 (hereafter Hendershot).)

To certify a class, “(1) there must be an ascertainable class; and (2) there must be a well defined community of interest in the questions of law and fact involved affecting the parties to be represented[.]” (Dunk, supra, 48 Cal.App.4th at p. 1806.) “The community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.” (Sav-On Drug Stores, Inc. v. Superior Court (2004) 34 Cal.4th 319, 326 (hereafter Sav-On).)

A plaintiff must present the Court with substantial evidence that the class certification requirements are satisfied. (Soderstedt v. CBIZ Southern California, LLC (2011) 197 Cal.App.4th 133, 154.) Appellate courts will not disturb a trial court’s ruling that is supported by substantial evidence unless (1) improper criteria were used or (2) erroneous legal assumptions were made. (Dunk, supra, 48 Cal.App.4th at p. 1807.)

a. Ascertainability

A class is ascertainable when it is defined in terms of objective characteristics and common transactional facts sufficient to allow members of the class to identify themselves as having a right to recover based on the class description. (Noel v. Thrifty Payless, Inc. (2019) 7 Cal.5th 955, 980.)

Here, as part of the settlement, Plaintiffs seek to certify a class of “all persons employed by [Defendant Frida Restaurant Beverly Hills, LLC] and classified as an hourly, non-exempt employee who worked for [Defendant] at the Frida Beverly Hills restaurant during the period from February 2, 2022” through the date of the Preliminary Approval Order. (Ex. A to Boyamian Decl. at ¶¶ 1.5, 1.16, 1.38.)

Although the class, as defined, sounds too broad to effectively identify putative class members with a right to recover on the basis of Defendant’s alleged overarching policies or procedures, Plaintiffs contend in supplemental briefing that as a practical matter, the class, as defined, pertains to a single restaurant location in Beverly Hills.

As such, each putative class member’s claims involve “a single workplace, the same location, the same operating principles, the same operating practices, the same scheduling environment, the same time keeping and payroll procedures, and the same practical conditions under which all employees performed their work." (Supp. Adams Decl. at ¶ 5.) Further, the claims all involve the same deficient written Employee Handbook that does not allow employees to leave the premises during their breaks, and which does not inform employees that they are entitled to one-hour of premium pay whenever Defendant fails to provide them with a meal or rest break, in violation of applicable California law. (Supp. Adams Decl. at ¶¶ 6-7.)

Therefore, the Court finds that the class, as defined, is reasonably ascertainable.

b. Numerosity

In determining whether joinder is impracticable, such that class treatment is appropriate, courts consider the size of the class, the nature of the action, the size of the individual claims, the inconvenience of trying individual suits, and any other factors relevant to the practicability of joining all putative class members. (Hendershot, supra, 228 Cal.App.4th at p. 1222.)

Numerosity has been found satisfied for classes as small as 10, 28, 35, and 42. (See, e.g., Rose v. City of Hayward (1981) 126 Cal.App.3d 926, 934.)

Here, Plaintiffs contend the putative class is approximately 625 employees. (Boyamian Decl. ¶ 53.) The Court generally agrees that joinder of 625 current and former employees would be impractical.

Further, as discussed above, Plaintiffs have now demonstrated, by virtue of the fact that all putative class members are hourly employees of the same restaurant location, that each putative class member alleges the same type of injuries.

Therefore, the Court determines that the class is sufficiently numerous.

c. Predominance

In order to certify a class, substantial evidence must demonstrate that issues common to the class predominate over individual issues. (Sav-On, supra, 34 Cal.4th at p. 327.)

Plaintiffs argue that common issues predominate because all of the claims arise from a uniform policy and systematic scheme of failing to pay hourly employees for all hours worked, failing to credit appropriate overtime pay, instituting an illegal rounding policy, and failing to provide meal and rest breaks or to pay associated premium pay.

In support, Plaintiffs advance the attorney declaration of Michael H. Boyamian, which provides:

8. I am fully familiar with the facts and history of this case as I have been lead counsel since the inception of this class action lawsuit initially filed by Plaintiff Leonardo Hernandez.

9. At its core, this class and representative action alleged that Frida engaged in widespread wage and hour violations, including but not limited to, not making meal and rest periods available to Class Members, refusing to issue tips, refusing to pay for all time Settlement Class Members worked.

[…]

17. Defendant denies the allegations and legal theories of the class action in its entirety, denies any liability or wrongdoing of any kind associated with the claims alleged in this action, and further denies that, for any purpose other than settling this action, this matter is appropriate for class treatment. Defendant further contends that it has complied with all applicable California laws, the California Labor Code, the applicable California Wage Order(s), and the Unfair Competition Law. Defendant contends that, if this matter were to be litigated further, it would have strong defenses to oppose class certification and succeed on the merits of Plaintiff's causes of action.

18. Through informal discovery,

Plaintiffs sought relevant productions of time and pay records, schedules, that were established during the relevant class period, which they obtained in conjunction with litigation and the scheduling of mediations.

19. Defendant provided
Plaintiffs with data and information concerning the number of Settlement Class Members at issue throughout the class period and a spreadsheet detailing the job titles of the Settlement Class Members for Defendant throughout the class period.

20. For example, Plaintiffs
were able to ascertain that at any given month during the Class Period, Defendant employed 625 Settlement Class Members. Using the records detailing the number of hours worked, hourly rate, shift, length, and number of years in the class period, and the data surrounding the number of current and former Class Members, Counsel for Plaintiffs were able to provide numerous data points used in establishing a potential exposure model in preparation for mediation.

[…]

24. The total estimated maximum
theoretical exposure, assuming certification and prevailing at trial, would be approximately $10,720,070.00. These maximum theoretical estimates are, however, just that “maximum” and “theoretical.” For example, these estimates assumed that Settlement Class Members worked one hour off the clock for every shift worked, and that all off the clock hours were overtime hours. The estimates also assumed that rest break violations occurred on 100% of shifts of at least 5.0 and 3.5 hours, respectively. Most importantly, these estimates assume class treatment of the claims, which Plaintiffs would possibly not have enjoyed had the case continued in litigation, given the legal and factual grounds available to defend this action. Plaintiffs discuss the core claims in greater detail below along with the relative strengths and weaknesses.

25. A review of the payroll and
timecard data analyzed by Plaintiffs’ Counsel and his expert revealed that in approximately 30% of the eligible 232,500 shifts, Plaintiffs and Settlement Class Members experienced a meal break violation. Moreover, Plaintiffs contended that during the Class Period, Defendants did not issue any meal and/or rest break premiums for such violations. Therefore, Plaintiffs tabulated Defendants’ exposure for the meal break claim at $1,116,000.00, i.e., 69,750

shifts x $16.00/hr. Plaintiffs also assumed that for the rest break claim, given Defendants' failures to provide a statutorily-compliant and mandated meal break, Defendants did not provide Settlement Class Members with rest periods. Plaintiffs estimated Defendants' exposure on the rest break claim being $3,720,000.00, i.e., 232,500 shifts x $16.00/hr.

26. However, Defendants countered that they maintained paper compliant policies during the Class Period. Defendants further contended that under Brinker they are only required to "provide" the opportunity to take meal periods, not "ensure" meal periods are taken. Brinker Restaurant Corp. v. Superior Court (2012) 53 Cal.4th 1004, 1038 (rejecting "ensure" standard). Defendants also maintained it provides all legally required meal periods, and asserts that any missed meal periods are the result of employee choice, not some corporate policy or structure.

27. As to the underpayment and/or failure to pay minimum and overtime wages, Defendants required Plaintiffs and other Settlement Class Members to perform off-the-clock work.

28. Moreover, Defendants frequently called and texted Plaintiffs and other Settlement Class Members after scheduled work hours to discuss work related issues. However, Defendants never compensated Plaintiffs and other Settlement Class Members for this additional time worked. Plaintiffs maintained that Defendants' payment practices are unequivocally unlawful as it is designed to evade the payment of overtime and payment for all hours worked in California. Plaintiffs therefore assumed a two (2) hours of unpaid overtime occurring each week and estimated Defendants' liability for this claim being $2,232,000.00, i.e., $24.00/per hour ($16.00/hr x 1.5) x 2 hours x 46,500 workweeks. In response, in opposing certification and liability, Defendants contended that they had paper compliant policies prohibiting off-the-clock work, that the experiences of Class Members varied within the restaurant location, specifically as it pertains to the supervisor that the Settlement Class Member reported to and the particular shift that they worked (sic)

29. As a result of these core (alleged) wage and hour violations, Plaintiff asserted that Defendants failed to comply with its final payment and wage statement obligations, in violation of Cal. Labor Code §§ 203 and 226, respectively. Plaintiffs also seek civil

penalties under the Private Attorneys General Act ("PAGA"), based on the aforementioned claims.

30. During the Class Period, there were 553 terminated employees and the daily rate was determined to be $128. Therefore, for waiting time penalties, Plaintiffs determined that Defendants' exposure for this claim would be $2,123,520.00. Similarly, for the 226 wage statement subclass Plaintiffs calculated Defendants' liability as follows: the average number of employees per pay period was 71; the number of pay periods during the class period was 51. Further, given that penalty for the first violation was $50, and the penalty for subsequent violations was $100, the penalties per Settlement Class Member was $5,050 for a collective sum of $358,550.

31. Defendants assert that they have strong defenses to the waiting time claim because there are good-faith disputes as to Plaintiffs' underlying claims, precluding imposition of penalties. See 8 Cal. Code Regs. § 13520 (a "good faith dispute that any wages are due will preclude imposition of waiting time penalties").

32. Defendants (sic) further contends (sic) Plaintiffs' meal and rest period claims cannot support a waiting time penalty claim after Kirby v. Immoos Fire Protection, Inc., 53 Cal.4th 1244 (2012), which held meal period claims are not actions for "nonpayment of wages," a view adopted in Ling v. P.F. Chang's China Bistro, Inc., 245 Cal.App.4th 1242, 1261 (2016) ("[f]ollowing Kirby, section 226.7 cannot support a section 203 penalty…"). With respect to wage statement penalties, Defendants argues (sic) that, as with waiting time penalties, meal and rest period claims cannot support a claim for wage statement penalties after Kirby (see, e.g., Jones v. Spherion Staffing, 2012 WL 3264081, *8-9 (C.D. Cal. 2012).

33. Defendants further argue that the alleged wage statement violations could not be shown to be "knowing and intentional," and that Plaintiffs cannot show that they or any other Class Member "suffer[ed] injury" as a result of the alleged wage statement violations, as required by Lab. Code § 226(e) for imposition of penalties.

34. Plaintiffs also sought PAGA penalties. PAGA allows the private enforcement of certain California Labor Code

sections relating to wage and hour violations. PAGA Section 2699(f)(2) provides for a standard penalty amount where a civil penalty is not otherwise specified by statute: [T]he civil penalty is one hundred dollars ($100) for each aggrieved employee per pay period for the initial violation and two hundred dollars ($200) for each aggrieved employee per pay period for each subsequent violation.

35. There were 11,700 total pay periods during the PAGA Period. Plaintiffs therefore estimated a total maximum PAGA exposure of $1,170,000. Plaintiffs' PAGA claims are subject to the same risks on the merits as Plaintiffs' non-PAGA claims. In addition, Labor Code § 2699, subdivision (e)(2) provides that "[i]n any action by an aggrieved employee seeking recovery of a civil penalty available under subdivision (a) or (f), a court may award a lesser amount than the maximum penalty amount specified by this part if, based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust, arbitrary, oppressive, or confiscatory."

36. In Thurman v. Bayshore Transit Management, Inc. ("Thurman") (2012) 203 Cal. App. 4th 1112, the court determined that an award of the maximum penalty allowed may be unjust in circumstances outside of when a defendant cannot afford to pay the maximum amount. Thurman v. Bayshore Transit Management, Inc. (2012) 203 Cal. App. 4th 1112, 1135-1136. The Thurman court found that penalties may be reduced when a defendant has taken its obligations to comply with the law seriously. Defendant maintains that if the case were to continue in litigation, they would be able to show that they have never been subjected to this type of lawsuit before, and that in response to the lawsuit, they took their obligations to comply with the law seriously. As such, if Plaintiffs were able to prevail on the merits of their PAGA claims, it is likely that the Court would reduce the maximum penalty allowed.

37. In addition, as the PAGA violations asserted by Plaintiffs are predicated on the same unlawful conduct that Plaintiffs based their other claims, Plaintiffs' PAGA claims is subject to the same risks on the merits as Plaintiffs' class claims. If Plaintiffs are ultimately unable to prevail on any one of their class claims, their recovery under the PAGA as to that violation would also fail. The likelihood of the Court reducing the PAGA damages awarded to Plaintiffs and the aggrieved employees – assuming liability is proven as to each of Plaintiffs' claims – is

also higher in this case where these same individuals will also be receiving money for the same unlawful conduct under the class claims. See Avila v. Cold Spring Granite Co. (E.D. Cal. Jan. 12, 2018) Case No. 1:16-cv001533-AWI-SKO, 2018 U.S. Dist. LEXIS 6142 *17 ("Because the PAGA penalties sought are at least partially duplicative of penalties granted by the underlying Labor Code violations, see, e.g., Cal. Lab. Code §§ 203, 226, 558(a), 1194.2, and because a Court has discretion in whether and in what amount to award PAGA penalties, see Cal. Lab. Code § 2699(e)(2), Plaintiffs recognize that the potential PAGA penalties are highly uncertain.").

38. Accordingly, Plaintiffs had to apply discounts to the maximal figure primarily taking into account this Court's ability to reduce penalties to arrive at a much lower number.

39. While the Gross Settlement Amount of $1,250,000 is a small percentage (11%) of the "maximum theoretical exposure," if Plaintiffs were to suspend reality and forge ahead with their class claims, there could be a realistic likelihood that various factors or defenses pose a real risk to recovery, and could deprive Settlement Class Members of any recovery whatsoever. As such, the Settlement avoids that risk and falls well within the range of reasonableness and that the Parties' Settlement Agreement is fair, free from collusion, and provides substantial benefits to the Settlement Class.

40. In any event, the only question at preliminary approval is whether the settlement is within the range of possible approval. In re Tableware Antitrust Litig., 484 F. Supp. 2d 1078, 1079 (N.D. Cal. 2007). "The fact that a proposed settlement may only amount to a fraction of the potential recovery does not, in and of itself, mean that the proposed settlement is grossly inadequate and should be disapproved." City of Detroit v. Grinnell Corporation (2d Cir. 1974) 495 F. 2d 448, 455, see also Linney v. Cellular Alaska Partnership (9th Cir. 1998) 151 F.3d 1234,1242 ("[I]t is the very uncertainty of outcome in litigation and avoidance of wasteful and expensive litigation that induce consensual settlements. The proposed settlement is not to be judged against a hypothetical or speculative measure of what might have been achieved by the negotiators."). Here, as discussed above, the Settlement falls well within the range of reasonableness. The Parties' Settlement Agreement is fair, free from collusion, and provides substantial benefits to the Class Members.

41. The proposed PAGA
allocation of the Gross Settlement Amount is fair, just, and reasonable. Moniz v. Adecco USA, Inc., 72 Cal.App.5th 56, 77 (2021). Where settlements "negotiate a good faith amount" for PAGA Payment and "there is no indication that this amount was the result of self-interest at the expense of class members," such amounts are generally considered reasonable. Hopson v. Hanesbrands Inc., No. CV-08-0844 EDL, 2009 WL 928133, at *9 (N.D. Cal. Apr. 3, 2009). Courts routinely approve amounts for PAGA Payment in the range of zero to two percent of the settlement. See Id. at *1, 9 (approving a PAGA payment of 03%); Jack v. Hartford Fire Ins. Co., No. 09cv1683 MMA (JMA1¨1 WL 4899942, at *6 (S.D. Cal. Oct. 13, 2011) (approving a PAGA payment of 0.25%); McKenzie v. Fed. Express Corp., No. CV 10-02420 GAF (PLAx), 2012 WL 12882124, at *5 (CD. Cal Jan. 23, 2012) (acknowledging that courts approve PAGA claim settlements in the range of zero to two percent of the total settlement).

42. Here, the Parties
negotiated a good faith PAGA Payment in the amount of $50,000. This amount falls well within the range of approved PAGA Payment. Seventy-Five percent (75%) of the PAGA Payment ($37,500.00) will be paid to the LWDA ("LWDA PAGA Payment") with the remaining twenty-five percent (25%) of the PAGA Payment ($12,500.00) will be distributed to the PAGA Class Members, which is within the range of PAGA Payment approved by courts and should be approved.

(Boyamian Decl. ¶¶ 8-9; 17-20;
24-42.)

In light of the fact that all putative class members
worked at the same restaurant location, under the same policies, combined with the sampling as described above, Plaintiffs have provided substantial evidence to support the theoretical exposures. (See
Boyamian Decl. ¶¶ 25-37.)

Plaintiffs also advance their own
declarations, which provide:

4.
I contacted my current attorney to question the employment practices at Defendants' restaurant location prior to commencing this lawsuit. I accepted the opportunity to act as a lead representative on behalf of other employees of

Defendants in this action, whom I believed were being subjected to labor law violations. Although presented with the opportunity, I did not want to pursue any case on an individual basis and instead did so as an representative action so that I could help my fellow co-workers recover for what I believed were improper practices.

5.
Specifically, I questioned Defendants' policies or practices of failing to pay wages for all hours worked by employees including failing to pay premium wages to employees who were denied rest breaks and meal periods; failing to pay overtime compensation;; and failing to issue its employees accurately itemized wage statements. I felt as though it was not being told when to clock out for meal breaks or acknowledge taking a rest breaks when the breaks were superficial as we were too pressed for time to take one.

6.
I felt as though that my experiences interacting with my supervisors were not right and did not give me a sense of satisfaction that Defendants were ensuring that Class Members, like myself, were being paid for all the hours that we worked or that we were being given the necessary breaks. Through many discussions with my lawyers, and through my own research on the Internet, I learned these may be illegal practices and that warehouse employees, like myself, might have recourse for them.

(Hernandez
Decl. ¶¶ 4-6; see also Covarrubias Decl. ¶¶ 4-6 [same].)

In context of the fact that all
conduct alleged involved a single restaurant location, the named Plaintiffs' experience that they felt too pressed for time to take a break can be reasonably extrapolated across the putative class members. As such, Plaintiffs have now advanced substantial evidence of a corporate policy or practice of denying meal or rest breaks in violation of the law to demonstrate common issues predominate.

d. Typicality

Plaintiffs
argue that their claims are typical to the claims of the class, as they both possess the same interests as other members of the class, have suffered the same injury as other members of the class, and have suffered the same injury as

other members of the class. (Covarrubias Decl. ¶ 2; Hernandez Decl. ¶ 2.)

Indeed, as Plaintiffs were both employed by Defendant after February 2, 2022 and claim wage and hour violations.

Further, because all putative class members worked for the same restaurant location, a reasonable inference can be made that Defendant applied common policies/practices across the board to its employees, resulting in the same types of wage and hour violations to putative class members, and that Plaintiffs' claims and experiences are typical of the class.

e. Adequacy

Adequacy of representation requires that a plaintiffs' attorney be qualified to conduct the proposed litigation and that the named plaintiffs' interests are not antagonistic to the class. (McGhee v. Bank of Am. (1976) 60 Cal.App.3d 442, 450.)

Here, counsel is qualified to conduct the proposed litigation, as counsel has listed at least 48 wage and hour and consumer class and representative matters counsel has litigated since January 2013. (See Boyamian Decl. ¶ 4.)

Further, the named Plaintiffs' interests here are aligned with those of the class, as all class members were hourly workers at the same restaurant location, operating under the same Employee Handbook and the same implementation of company policies by the same individuals.

Therefore, the Court finds adequacy satisfied.

f. Reasonableness

The maximum theoretical exposure, here, is $10,720,070, which is based upon an assumption that violations occurred on 100% of shifts, whereas a sampling of the shifts demonstrated missed meal or rest breaks only about 30% of the time. Thus, the realistic exposure is likely less than a third of that amount.

As such, the Court finds the proposed settlement amount of $1,250,000 to be reasonable. (See e.g. Glass v. UBS Fin. Svs., Inc. (N.D. Cal. Jan 26, 2007) 2007 U.S. Dist. LEXIS 8476 at *28 [finding class action settlement of 25% to 35% of the estimated actual loss to be reasonable].)[1]

g. Service Awards and Attorneys' Fees

The Court finds the requested service awards of $10,000 for each of the two named plaintiffs to be a reasonable compensation for the additional time and effort they each incurred.

Even further, the Court finds the requested attorneys' fees in the amount of $437,500, representing 35% of the Gross Settlement Amount to be reasonable.

Plaintiffs may also submit a memorandum of costs reasonably incurred, not to exceed $30,000.

CONCLUSION AND ORDER

For the foregoing reasons, the Court grants Plaintiffs' motion. As such, the Court:

1. Preliminary and conditionally certifies the Class as described in the parties' Settlement Agreement

2. Preliminarily approves the named Plaintiffs as class

representatives

3.
Preliminarily approves Levon Shant Yepremian,
Christopher A. Adams, Vache Thomassian, and Caspar Jivalgian of KJT Law Group, LLP and Michael H. Boyamian and Armand R. Kizirian of Boyamian Law Inc. as class counsel

4.
Preliminarily approves the Settlement Agreement in the amount of $1,250,000

5.
Approves the form and content of the proposed Notice to the class

6.
Approves the appointment of ILYM Group, Inc. as settlement administrator and preliminary approval of $9,650 in settlement administration costs

7.
Preliminarily approves the payment of a “service award” in the amount of $10,000 each to Plaintiffs Covarrubias and Hernandez, for a total of $20,000 to be deducted from the gross settlement amount and

8.
Preliminarily approves the application for payment to class counsel of reasonable attorneys’ fees in the amount of $437,500, representing 35% of the gross settlement and reimbursement of actual, reasonable costs incurred.

Further, the Court
notes that Plaintiffs lodged a proposed Order on April 23, 2026, but the Court will Plaintiffs to lodge and serve an updated proposed Order in conformity with the Ruling on or before August 12, 2026.

Plaintiffs shall
provide notice of the Court’s ruling and file the notice with a proof of service forthwith.

DATED: July 29, 2026 ________/s/___________________

Michael
E. Whitaker

Judge
of the Superior Court

[1] Assuming 30% actual loss, the settlement amount of
$1,250,000 represents 38.87% of the estimated actual loss of $3,216,021.